

REQUEST FOR PROMPT PUBLICATION AND A MEANINGFUL HEARING RECORD

Proposed Local Law Concerning Nonresidential Property and Accessory Structures

TO	Mayor Marc D. Citrin and the Board of Trustees
FROM	David McFadden and Robin McFadden
DATE	August 6, 2026
RE	Public hearing announced for August 20, 2026
COPIES	Village Clerk and Village Attorney

Dear Mayor Citrin and Trustees:

We respectfully ask the Board to publish the completely proposed local law and the records scheduled for discussion sufficiently in advance to permit informed participation. We also request, as good legislative practice, the nonprivileged factual basis and hearing procedures described below. Notice of hearing and access to the legislation residents are expected to evaluate are related but distinct matters; a hearing notice cannot substitute for the operative text.

1. The public record announces a hearing but does not disclose the proposed law

The Mayor's July 2026 Monthly Message states: "At the upcoming August 20 meeting, the Board of Trustees will consider a proposed Local Law to prohibit the rental of accessory structures, such as boathouses, barns, garages, pools, and tennis courts to the public. A Public Hearing will be held prior to any vote on adoption of the proposed Local Law.

That announcement is not legislation. It does not identify the Code chapter to be amended, reproduce operative language, define rental, accessory structure, nonresidential property, event or general public, explain whether payment or transfer of possession is required, identify exemptions, or state the penalties, enforcement standards, effective date or appeal procedure. It does not reveal whether the proposal concerns residential occupancy under Chapter 100, photography and filming under Chapter 51, events under another chapter, zoning, or some combination.

The July 16 meeting agenda listed New Business item 8(f): "Discussion regarding rentals of non-residential properties such as boathouses, barns, garages, pools, tennis courts, etc. to the public for parties and other events." The event page contains the agenda and numerous attachments but, in the materials reviewed, no proposed-local-law text. The mayor's later message announces consideration of a proposed law on

August 20 but does not state that legislative text was introduced, circulated, or presented in July.

The terminology also changed. “Non-residential properties” is broader than “accessory structures.” “Parties and other events” are different from rental. “The public” may mean an open event, invited guests, outside workers, a production crew or any nonowner. Until the text is published, residents cannot know whether it reaches owner-hosted photography, book signings, charitable gatherings, design and architectural work, real-estate media, professional home-office content, Club events, or other temporary uses.

2. The Board previously demonstrated the appropriate transparency

On June 18, the published agenda identified David’s June 14 memorandum proposing changes to Chapter 51 and referred it to the Village Attorney for initial review. The Village posted the complete memorandum with the agenda. Residents could read the actual proposal, evaluate its words, and respond intelligently. The same transparency should apply—at minimum—to a local law the Board itself may adopt.

If no operative local-law draft yet exists, please say so plainly. If a draft exists or is scheduled for discussion, please post it promptly rather than wait until immediately before the meeting.

3. New York’s meeting-material rule establishes a minimum—not a sound hearing schedule

New York Open Meetings Law §103(e) requires, to the extent practicable, that proposed resolutions, laws, rules, regulations, policies and amendments scheduled for discussion at an open meeting be made available upon request and posted online at least 24 hours before the meeting when the public body maintains a regularly updated website. That requirement is a minimum transparency rule. It does not mean that releasing a substantial private-property law only 24 hours before a public hearing provides residents with a meaningful opportunity to consult counsel, research comparable laws, organize witnesses and prepare documentary exhibits.

We therefore request publication as soon as the draft exists. If it is first released shortly before August 20, materially revised after publication, or changed during the hearing, the Board should continue or adjourn the hearing and take no vote that evening.

4. Documents that should be published immediately

In addition to the operative draft and records scheduled for discussion, we request the following materials to the extent they exist, are nonprivileged and may lawfully be

disclosed. We recognize that some items may instead be addressed through FOIL and that the Board is not required to create records that do not exist:

- the complete current draft, including title or proposed number, findings, definitions, operative provisions, exemptions, enforcement, penalties, effective date, transition provisions, severability language, and attachments;
- a redline showing every proposed change to Chapters 25, 51, 100 or any other affected Code provision;
- the resolution or other formal action scheduling the August 20 hearing and the complete hearing notice;
- the date each draft or outline was created, circulated, or revised and a version history identifying recipients by office or title;
- any nonprivileged attorney transmittal, drafting instruction or memorandum explaining the proposal's scope;
- July 16 minutes or draft minutes and the timestamp in the meeting video at which item 8(f) was discussed;
- any nonprivileged complaint summary, factual memorandum, study, impact analysis, enforcement history, legislative finding, or alternative considered;
- all SEQRA forms or determinations, Orange County referral materials, zoning analyses, and other procedural documents the Board believes apply; and
- the date the final form was delivered to each Trustee and any mayoral emergency message or certificate relating to the statutory aging period.

If a listed record does not exist, a short statement identifying it as nonexistent will eliminate unnecessary confusion and allow residents to focus on the actual record.

5. This request supplements the pending FOIL requests

On August 4, we submitted separate Freedom of Information Law requests to the appropriate Village and Police Department records custodians. Those requests seek the drafting history, complaints, factual materials, Chapter 51 applications and enforcement records, police records, evidence of comparable uses, and applications or Board approvals concerning drone photography used in real-estate marketing. They direct the custodians to begin with the most recent records and move backward because the Village's files may not be organized efficiently.

We are not asking the Mayor or Trustees to conduct the FOIL search personally. We are putting the Board on notice that these records have been requested and bear directly on necessity, neutrality, consistency, and proportionality. We ask the Board to avoid closing the hearing record before residents have had a reasonable opportunity to review responsive records and to encourage rolling production rather than delaying all production until the oldest material has been located.

6. Preserve the complete legislative and enforcement record

Please ensure preservation, in accordance with applicable records-retention requirements, of public records concerning the proposal and its factual basis, including drafts, redlines, version metadata, email, text messages, memoranda, complaints, photographs, social-media screenshots retained by officials, agendas, minutes, audio/video, calendar entries, enforcement inquiries, Police Department communications and correspondence with applicants, institutions or residents. This is a preservation request—not a demand for privileged attorney-client advice or material lawfully exempt from disclosure.

For Chapter 51 and comparator records, the relevant period begins in 2011 because Local Law 1-2011 added the “business or commercial gain” language. The record should allow the public to determine what applications were filed, which activities were approved or denied, what conditions were imposed, what officials knew about unpermitted activity and whether any warning, stop-work order, summons, or other enforcement followed.

7. Hearing procedures should be disclosed before August 20

Please publish the procedures governing the hearing, including:

- the precise hearing time, physical location, accessibility arrangements, and any remote-participation information;
- any speaker-registration procedure and the order in which speakers will be called;
- the speaking-time limit and whether speakers may yield time or designate a principal presenter;
- how written comments, legal authorities, photographs, PowerPoint slides, video, and other exhibits may be submitted;
- the deadline and approved email, physical-delivery, or electronic-upload method;
- whether written material will be distributed to every Trustee and incorporated into the official legislative and hearing record;
- whether the Board will accept supplemental material after the first hearing session and the date the record will close; and
- the process for requesting confirmation that a submission was received and made part of the record.

A Board may impose reasonable, viewpoint-neutral time and procedural rules. A five-minute oral limit, however, cannot substitute for accepting a comprehensive written submission on a factual and legally complex proposal. We will prepare a concise oral statement, but we ask that the full letters, exhibits, legal authorities and source materials be accepted, distributed, retained, and considered before the record closes.

8. Electronic and visual exhibits

Our submission may include documentary exhibits and a visual PowerPoint/PDF record containing publication pages, photographs, source citations and, where appropriate, video stills or source links. Please advise whether the Village will accept a USB drive containing the PowerPoint, PDF, MP4 source files and exhibit index; whether Village equipment will be available; and what approved electronic-delivery method should be used if external drives are not accepted.

We will also provide a printable PDF so the substance can be reviewed if video playback is unavailable. Please confirm that both the printable submission and any accepted electronic media will be retained with the official hearing record. If a thumb drive cannot be accepted for security or archival reasons, please identify an alternative that preserves file integrity and accessibility.

9. Prominent digital and physical distribution

Because residents use different information channels, the notice, complete draft, redline and submission instructions should be posted consistently rather than buried in one agenda attachment. We request direct posting or linking at:

- the Board of Trustees BOT Agendas page and the August 20 agenda, accurately identifying the proposed law's actual subject;
- the Village Official Notices page;
- the homepage Meeting & Events Calendar and dedicated August 20 event page;
- a temporary homepage News/alert item and the Village subscriber email or e-alert system;
- Village Hall's official bulletin board and main public entrance, including a location visible when the office is closed;
- the residents notice boards at both Village gates;
- the Tuxedo Park Library public-notice area and, with permission, the Post Office; and
- any other Village-controlled board or customary posting location, together with required newspaper publication.

We recognize that not every additional location is necessarily required by statute. We request broader distribution because the proposal may affect Village-wide property use and because meaningful notice should reach residents through the channels the Village ordinarily uses.

Our broader requests for distribution, redlines, supporting records and extended review are recommendations for a meaningful legislative process. They are not presented as a claim that Open Meetings Law §103(e) independently mandates every requested item or location of posting.

10. Version control and continuing disclosure

Every posted draft should display a clear revision date or version number. If the proposal is revised, renumbered, or supplemented before or during the hearing, the Village should retain prior versions, post the latest version promptly and provide a redline. Residents should not be required to compare unlabeled PDFs or discover after speaking that they addressed superseded language.

Written comments and exhibits submitted while the record remains open should be accepted, acknowledged, distributed to the Trustees, and retained with the minutes and legislative file. The final minutes should identify the hearing sessions, speakers, written submissions, motions, votes, and disposition of the record.

11. Adequate disclosure and deliberation before any final vote

The present Board retains full authority to act. Our request for deliberation rests primarily on the absence of an operative public draft, the incomplete factual record and the lack of any identified emergency requiring immediate enactment. The expected arrival of two new trustees following the election provides an additional prudential reason to avoid unnecessary haste, but it is not asserted as a legal limitation on the sitting Board.

The Village should also identify the categories of temporary compensated use the Board intends to regulate—including overnight accommodations, private events, photography, filming and other owner-supervised activities—and state whether the proposal is intended to affect lawful preexisting nonconforming uses, variances, certificates of occupancy or other property-specific authorizations.

The related FOIL requests place the Village on notice that residents are seeking records that may clarify the legal classifications and historical treatment of Club lodging, institutional events, professional photography, real-estate media and other temporary or compensated uses. Until those records are produced, these examples should be treated as questions for consistent administration rather than established legal comparators.

We therefore ask the Board to publish the operative text and scheduled materials, conduct a genuinely informed hearing, keep the record open when material disclosures remain pending and take no final vote until residents and Trustees have had adequate review time. If the Board concludes that additional regulation is necessary, it should first consider neutral, impact-based standards and a low-impact safe harbor before adopting a categorical prohibition.

12. Requested written confirmation

Please confirm, as soon as practicable:

- whether an operative draft exists and when it will be posted;
- where the draft, notice, redline and supporting materials will appear;
- the hearing procedures, submission deadline, and approved methods for written and electronic exhibits;
- whether the Board will keep or adjourn the hearing if disclosure is late or the draft materially changes; and
- whether the Board intends to vote on August 20 or will defer final action.

This is not a request for special treatment. It is a request for the ordinary transparency necessary for a meaningful public hearing on legislation that may affect the use of private property.

Exhibits submitted with these letters

Exhibit A: Historic New York communities and filming regulation; Exhibit B: Existing Airbnb prohibition and the photography-session distinction; Exhibit C: Tuxedo Park's history of photography, filming, and publication; and Exhibit D: Taxes, regulatory burden, and property marketability.

We ask that all four exhibits be accepted into the legislative and hearing record, retained with written comments, and considered before the Board closes the hearing or votes.

Sincerely,

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Copy: Village Clerk; Village Attorney